

employment, it was of infinite duration and it lacked mutuality. (*Cook v. Univ. of S. Cal.* (2024) 102 Cal.App.5th 312, 317-326.) Here, although there is no termination date in this agreement, the contract is expressly limited to claims arising out of the employment relationship and applies to parties mutually. (Rhodabarger Decl. ¶ 4, Ex. B.) Therefore, Plaintiff has not established substantive unconscionability.

CU-25-00296 McPhail Enterprises LLC vs. L Plus L LLC

The Motion to be Relieved as Counsel is GRANTED. Plaintiff's counsel has demonstrated that irreconcilable differences have arisen between counsel and client. The order is effective upon the filing of the proof of service of this order.

CU-25-00329 Wenceslao, Gutierrez vs. Al Fresco Landscaping, Inc., et al.

Plaintiff's Motion to Compel Further Responses as to Plaintiff's Special Interrogatories (Set 1) Nos. 1 through 8 is GRANTED as requested. Defendant Al Fresco Landscaping, Inc ("Defendant") is ordered to pay the entire cost of the *Belaire-West* administration, to cooperate with Plaintiff's counsel in finalizing the language of the *Belaire-West* notice within seven calendar days of this Order; to initiate the *Belaire-West* notice administration within 14 calendar days of this Order; and to pay monetary sanctions in the amount of \$4,339.90 to Plaintiff's counsel within seven calendar days of the date of this order.

Plaintiff brought this class action on behalf of Defendant's non-exempt California employees for various Labor Code violations. On April 10, 2026, Plaintiff served Special Interrogatories (Set One), Nos. 1–8, seeking the putative class members' names, addresses, telephone numbers, email addresses, job titles, work locations, and dates of employment. Defendant served responses on June 3, 2026 objecting to the request and agreed to comply with the request.

The requested information is plainly discoverable, as Defendant's agreement to produce it concedes. California courts have long held that the names and contact information of putative class members are routinely discoverable in wage-and-hour actions, because those employees are percipient witnesses to the practices at issue. (*Williams v. Superior Court* (2017) 3 Cal. 5th 531, 551–52.) Defendant's two objections do not bar production. Its privacy

objection is fully answered by the Belaire-West opt-out notice, which the Supreme Court has held adequately protects any privacy interest employees have in their contact information. (*Id.* at 552–55.) Defendant’s “ongoing investigation” objection fails as a matter of law, because a party may not withhold discovery on the ground that “it has not fully investigated the case.” (Cal. Code Civ. Proc. §2016.090(a)(2).)

END OF TENTATIVE DECISIONS